

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman., Department Advocate's Office, February 24, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29101 against Police Officer Asia Stewart, Tax Registry No. 938490. The case was conferenced on February 11, 2025, before Assistant Deputy Commissioner of Trials Anne Stone who approved the negotiated penalty of Formalized Training after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

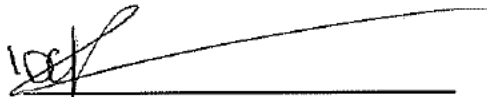
PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031521BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, STEWART	FIRST ASIA	M.I.	COMMAND 063
SHIELD NO. 9842	TAX REGISTRY NO. 938490	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Asia STEWART, on or about May 22, 2022, at approximately 1003, while assigned to 063 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that PO STEWART entered § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.


FIRST DEPUTY COMMISSIONER

08/19/25
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

9/29/25
DATE



POLICE DEPARTMENT

September 22, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202203327 (Incident Date: May 22, 2022) involving Police Officer Asia Stewart, Tax No. 938490 (DADS Case No. 2023-29101/ PODS Case No. C-031521)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Asia Stewart and determined that no disciplinary action is warranted regarding the allegation of entering a residence without sufficient legal authority.

In this matter, Police Officer Stewart and other officers responded to a 911 call regarding an emotionally disturbed person at an apartment residence. The female caller had called and threatened self-harm if her boyfriend was arrested for an incident that had occurred earlier. The Police Commissioner has reviewed and considered the totality of the circumstances in this matter and has determined that Police Officer Stewart's actions do not warrant disciplinary action. While Police Officer Stewart and the complainant were speaking at the apartment's front door entrance, Police Officer Stewart says, "We have to check just to make sure everything is okay." The complainant said, "Yeah," and walked into the apartment while continuing her conversation with Police Officer Stewart. Police Officer Stewart followed her into the apartment and continued their conversation. Based on the body-worn camera footage of the incident, the Police Commissioner determined that the complainant implicitly consented to Police Officer Stewart's entry into the apartment through her conduct.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: Craig Hayes, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 29, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 2022-03327 v PO Asia Stewart; DADS No.: 2023-29101

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael Baker, dated September 22, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss Police Officer Asia Stewart’s formalized training after a determination that no disciplinary action was warranted. Pursuant to Paragraph 6 of April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker stated that the Police Commissioner reviewed the entirety of this matter and determined that PO Stewart’s entry of a residence, after the occupant, § 87(2)(b) said “yeah” in response to PO Stewart’s statement that she had to “check just to make sure everything [was] okay” constituted implicit consent to PO Stewart’s entrance. Deputy Chief Baker also makes mention of § 87(2)(b) threatening self-harm but does not excuse the entry based around this factor.

It is undisputed from PO Stewart’s Body-worn camera footage that PO Stewart asked who else was inside of the residence and § 87(2)(b) stated her friend. PO Stewart then asked if it was a female or male and upon learning it was a male, PO Stewart told § 87(2)(b) “[w]e have to check just to make sure everything is okay.” § 87(2)(b) responded “yeah,” walked away leaving the door open, and that PO Stewart then proceeded to enter § 87(2)(b) residence. PO Stewart maintained in her statement that this was consent, to enter. PO Stewart’s statement that officers had to enter § 87(2)(b) residence could not be reasonably construed as an affirmative request for consent to enter. Instead, PO Stewart is telling a civilian what action she will be taking, not leaving a reasonable person room to agree or disagree. Additionally, on PO Stewart’s BWC footage at 2:27 second § 87(2)(b) can be heard telling PO Stewart that she would call her friend down when she proceeded inside and PO Stewart followed her. There was no consent given and § 87(2)(b) intention is clear on the BWC footage.

Furthermore, PO Stewart did not have exigency to enter having failed to ascertain a threat rising to the level allowed under a warrantless entry. There were already four (4) other officers on scene when PO Stewart arrived. No other officer attempted entry. PO Stewart did not provide a consent to search form, nor did she ask for permission to enter the residence. Not only did PO Stewart enter the home, she went all the way upstairs and towards the bedrooms. § 87(2)(b) is



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Dr. MOHAMMAD KHALID
INTERIM CHAIR

visibly alarmed on the footage. CCRB considered the inherent concern of the situation, the good faith basis and the totality of the circumstances when resolving this matter and offered training, believing this was fair and sufficient for PO Stewart. Officers should be trained on when entry into homes are proper to avoid *Payton* violations.

Based upon the foregoing facts, we submit that the Police Commissioner's decision is not reasonable under the circumstances. The CCRB would request that the agreed upon settlement be followed and impose Formalized Training.

Respectfully submitted,

Andre D. Applewhite

p.p., Andre Applewhite, Chief Prosecutor
for Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board